

MEMORANDUM OF UNDERSTANDING
BETWEEN LARAMIE COUNTY COMMUNITY COLLEGE AND
THE CITY OF CHEYENNE, WYOMING

1. Parties. This Memorandum of Understanding (MOU) is made and entered into by and between Laramie County Community College (LCCC), whose address is 1400 E College Drive, Cheyenne, WY 82007, and the City of Cheyenne, Wyoming, (City) whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001.
2. Purpose. To set out the responsibilities for LCCC's CDL "Your Truck" Training Program to utilize the City's truck/trailer while receiving instructions from a LCCC trainer using the City's location as the base for this training.

LCCC will provide a CDL instructor exclusively to the City in order to provide the following training:

- Theory training (online) (30 days to complete 17-20 hours of online training – from home, place of work, etc.)
- Simulator training for shifting, turning, driving, and backing (up to 8 hours – provided on LCCC campus)
- Lecture training (in person) (lectures vary in length, 1-3 hours – provided on LCCC campus)
- Behind the wheel training (BTW) (in person)
 - BTW training can be adjusted based on trainee's previous experience and capabilities
 - Class A CDL training – Not to exceed 60 hours of BTW training
 - Class B, C, and Hotshot training – Not to exceed 50 hours of BTW training

BTW training does not include all additional training hours that the trainee receives. Only BTW hours are logged into the Training Provider Register (TPR) at the conclusion of training.

Trainee to instructor ratio is 2:1 (maximum)

The program will utilize the City's trucks and trailers to perform the BTW training. The BTW training will occur on rural, suburban, city, state highways, and US highways including the LCCC campus and LCCC training site at the Cheyenne airport as part of the CDL curriculum. The radius of training shall be limited 100 miles and is limited to the State of Wyoming. In addition, the truck/trailer will be used to demonstrate an inspection at a Port of Entry during the BTW training. The City shall ensure that the vehicle will be registered with the proper authorities.

3. Term of MOU. This MOU shall commence upon date of last signature and shall remain in full force and, thereafter, shall automatically renew, unless otherwise terminated.

4. Responsibilities of LCCC: LCCC agrees to the following:

A. LCCC will provide entry level driver training (ELDT) that meet:

- Title 49, Subtitle B, Chapter III, Subchapter B Part 380.707 Entry level training provider
- Title 49, Subtitle B, Chapter III, Subchapter B Part 380.709 Facilities
- Title 49, Subtitle B, Chapter III, Subchapter B Part 380.713 Instructor requirement
- Title 49, Subtitle B, Chapter III, Subchapter B Part 380.715 Assessments
- Title 49, Subtitle B, Chapter III, Subchapter B Part 380.717 Training certifications
- Title 49, Subtitle B, Chapter III, Subchapter B Part 380.703 Requirements for listing on the training provider register (TPR)

B. LCCC will provide Entry Level Driver Training (ELDT) theory training (online) self-paced. The trainee will have 30 days to complete ELDT consisting of the following:

- Theory Instructions meeting Title 49, Subtitle B, Chapter III, Subchapter B Part 380 Appendix A to Part 380
- Sexual Harassment
- Human Trafficking
- Hours of Service

C. Entry Level Driver Training LCCC will provide the following additional training on LCCC campus:

- Professionalism – Every third Tuesday of the month
- Wyoming Highway Patrol DQ Lecture – Every third Wednesday of the month
- Networking/Trucking 101 – Every fourth Thursday of the month

D. LCCC will provide BTW Range training at the LCCC training site located at 1204 Airport Pkwy, Cheyenne WY 82001 (Cheyenne Airport), and/or the City's place of business. Range training will be consisting of:

- pre-trip inspection training
- backing training also known as basic skills training

E. LCCC will conduct BTW road training on:

- rural, suburban, city and US highways (100-mile radius) in the State of Wyoming only

F. LCCC will also provide the following:

- upload all training scores into the Federal Training Provider Register (TPR)
 - conduct final CDL testing at the LCCC training site at the Cheyenne Airport
 - provide payment vouchers to cover the cost of the CLP and CDL
 - provide its own third part examiners to administer the final practical exam
 - Three (3) final practical tests per are included in the cost
Additional training cost will need to be negotiated if trainee fails after three (3) attempts
- G. LCCC will provide certificate of completion upon passing final practical exam
- H. LCCC will require a release of student information to the employer.
5. Responsibilities of the City: The City agrees to the following:
- A. The City Department that is participating in the “Your Truck Program” (YTP) shall provide a commercial motor vehicle (CMV) including associated trailer(s) for training, at the business location and meet the following requirements:
- CFR 49, Subtitle B, Chapter III, Subchapter B Part 382 – Controlled Substance and Alcohol use and Testing (as applicable).
 - CFR 49, Subtitle B, Chapter III, Subchapter B Part 383 – Commercial Driver’s License Standard: Requirement and Penalties (as applicable).
 - CFR 49, Subtitle B, Chapter III, Subchapter B Part 390 – Federal Motor Carrier Safety Regulation: General (as applicable).
 - CFR 49, Subtitle B, Chapter III, Subchapter B Part 393 – Parts and Accessories Necessary for Safe Operation (as applicable).
 - CFR 49, Subtitle B, Chapter III, Subchapter B Part 396 – Inspection, Repair, and Maintenance (as applicable).
 - CFR 49, Subtitle B, Chapter III, Subchapter B Part 380.711 – Equipment
- B. At the business location, the City shall make an area on the premises available where hand-on training may be performed.
- a) The training area shall be safe and capable to support vehicle inspections and associated training
 - b) The training shall not interfere with the City’s day-to-day operation

- C. The City shall dedicate trainees for the duration of time required to complete CDL training and certification:
 - Class A CDL – up to 18 continuous business days
 - Class B CDL, Class C, or Hotshot – up to continuous 13 business days
 - D. The City shall not interrupt, remove student from class or otherwise interfere with CDL training for the duration of the CDL class.
 - E. The City shall allow the CDL trainer to operate the vehicle on City property and off City property to demonstrate driving techniques, skills, and other aspects of training while the trainee observes.
 - F. The Agency shall maintain its liability insurance with WARM.
 - G. The City shall be responsible for any maintenance, repair, and fuel costs.
 - No such cost shall be the responsibility of LCCC.
 - H. The City shall allow LCCC to adjust training schedules in the case of inclement weather, vehicle availability, and instructor availability.
 - I. Trainees are expected to be on time and shall schedule any City training, or appointments outside of training hours of 8:00 AM to 5:00 PM, Monday through Friday.
 - J. Training will not be provided on holidays that are observed by LCCC or weekends.
 - K. Trainees are expected to dress appropriately to protect from the elements and associated hazards (gloves, caps, jackets, etc.) All such equipment and gear shall be provided by the trainee or the City.
 - L. The City or trainee shall provide high visibility safety vests and wear safety gloves during training.
 - M. The trainee will get in contact with areas and surfaces that will stain or damage personal and protective clothing. The replacement cost of the clothing shall be the responsibility of the City or trainee.
6. Compensation: In full consideration for the work and/or services to be performed herein, the City agrees to compensate LCCC as follows:
- A. Class A CDL training
\$3,600 includes cost for permit (CLP) and final CDL license

- B. Class B CDL training
\$2,900 includes cost for permit (CLP) and final CDL license
 - C. Hotshot training
\$2,900 includes cost for permit (CLP) and final CDL license
 - D. Class C CDL training
\$2,600 includes cost for permit (CLP) and final CDL license
7. Representatives: All notices, communications, correspondence, and transmittals regarding this MOU shall be done so via written instrument to the following representatives:
- A. LCCC representative for commercial, project and contractual matters is Abbie Connally, Director of Contracting & Procurement, (307) 778-1280, 1400 East College Drive, Cheyenne WY 82007 or aconnally@lccc.wy.edu
 - B. LCCC representative is Michael Geissler, 307-432-1637 MGeissle@lccc.wy.edu
 - C. The City's representative is Vicki Nemeck, Public Works Director, City of Cheyenne, (307) 637-6263, 2101 O'Neil Avenue, Cheyenne WY 82001 or vnemeck@cheyennecity.org.
8. General Provisions:
- A. Amendments. Either party may request changes in this MOU. Any changes, modifications, revisions, or amendments to this MOU which are mutually agreed upon shall be incorporated by written instrument, executed, and signed by all parties to this MOU.
 - B. Applicable Laws/Equal Employment Opportunity. Both parties shall fully adhere to all applicable local, state, and federal law, including equal employment opportunity and including but not limited to compliance with Title VI of the Civil Rights Act of 1964, Title IX of the Education Amendments of 1972, Section 504 of the Rehabilitation Act of 1973, the Age Discrimination Act of 1975, and the American with Disabilities Act of 1990. LCCC is committed to equal opportunity for all persons in all facets of LCCC's operations and is an Equal Opportunity/Affirmative Action employer. LCCC will provide all applicants for admissions, employment, and all University employees with equal opportunity without regard to race, gender, religion, color, national origin, disability, age, protected veteran status, sexual orientation, genetic information, gender identity, creed, ancestry, political belief, any other applicable protected category, or participation in any protected activity. LCCC ensures non-discriminatory practices in all matters relating to its education programs and activities and extends the same non-discriminatory practices to recruiting, hiring, training,

compensation, benefits, promotions, demotions, transfers, and all other terms and conditions of employment.

- C. Assignment. Without prior written consent of the other party, neither party may assign this MOU. This MOU shall inure to the benefit of, and be binding upon, permitted successors and assigns of the parties.
- D. Availability of Funds. Any payment by LCCC, as applicable under this MOU, is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation. If funds are not allocated and available for the continuance of the services, the MOU may be terminated by LCCC at the end of the period for which the funds are available. Parties shall notify one another at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to either Party in the event this provision is exercised, and both Parties shall not be obligated or liable for any future payments due or for any damages because of termination under this section.
- E. Entirety of MOU. This MOU represents the entire and integrated MOU the parties and supersedes all prior negotiations, representations, and MOUs, whether written or oral.
- F. Governmental Immunity. LCCC and the City do not waive Governmental/Sovereign Immunity by entering into this MOU and specifically retain all immunities and defenses available to it as a governmental entity pursuant to Wyo. Stat. §§ 1-39-101, et seq., and all other applicable laws. LCCC and the City fully retain all immunities and defenses provided by law regarding any action, whether in tort, contract, or any other theory of law, based on this MOU. Designations of venue, choice of law, enforcement actions, and similar provisions should not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this MOU shall not be strictly construed, either against or for either party, except that any ambiguity as to sovereign immunity shall be construed in favor of sovereign immunity.
- G. Indemnification. To the fullest extent permitted by law, each party to this MOU shall assume the risk of any liability arising from its own conduct. Neither party agrees to insure, defend nor indemnify the other from all lawsuits, losses, liability for injuries, damages, claims, penalties, actions, demands, expenses, or attorney fees arising from or in connection with the respective services performed under this MOU.
- H. Non-Discrimination Statement. LCCC is committed to providing a safe and nondiscriminatory educational and employment environment. The college does not discriminate on the basis of race, color, national origin, sex, disability, religion, age, veteran status, political affiliation, sexual orientation, or other status protected by law. Sexual harassment, including sexual violence, is a form of sex discrimination prohibited by Title IX of the Education Amendments of

1972. The college does not discriminate on the basis of sex in its educational, extracurricular, athletic, or other programs or in the context of employment. The College has a designated person to monitor compliance and to answer any questions regarding the college's on-discrimination policies: Please contact: Title IX and ADA Coordinator, Room 117, Student Services Building, 1400 E Collee Drive, Cheyenne, WY 82007, 307-778-1217, TitleIX_ADA.Coordinator@lccc.wy.edu

- I. Prior Approval. This MOU shall not be binding upon either party unless this MOU has been reduced to writing before performance begins as described under the terms of this MOU, and unless this MOU is approved as to form by the Office of General Counsel.
- J. Severability. Should any portion of this MOU be judicially determined to be illegal or unenforceable, the remainder of the MOU shall continue in full force and effect.
- K. Termination. This MOU may be terminated upon thirty (30) days written notice of either party.
- L. Third Party Beneficiary Rights. The parties do not intend to create in any other individual the status of third-party beneficiary, and this MOU shall not be construed to create such status. The rights, duties, and obligations contained in this MOU shall operate only between the parties to this MOU. The provisions of this MOU are intended only to assist the parties in determining and performing their obligations under this MOU. The parties to this MOU intend and expressly agree that only parties signatory to this MOU shall have any legal or equitable right to seek to enforce this MOU, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this MOU, or to bring an action for the breach of this MOU.
- M. Legal Authority. Each party to this MOU warrants that it possesses the legal authority to enter into this MOU and that it has taken all actions required by its regulations, procedures, bylaws, and/or applicable law to exercise that authority, and to lawfully authorize its undersigned signatory to execute this MOU and to bind it to its terms. The person(s) executing this MOU on behalf of a party warrant(s) that such person(s) has full authorization to execute this MOU.

9. Signatures. In witness whereof, the parties to this MOU through their duly authorized representatives have executed this MOU on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this MOU as set forth herein.

The effective date of this MOU is the date of the signature last affixed to this page.

LARAMIE COUNTY COMMUNITY COLLEGE

Dr. Joe Schaffer, President

Date

CITY OF CHEYENNE

Patrick Collins, Mayor

Date

(S E A L)
ATTEST:

Kristina F. Jones, City Clerk

CITY ATTORNEY'S OFFICE APPROVAL AS TO FORM

Stefanie Boster

Date



WYOMING ASSOCIATION OF RISK MANAGEMENT

PO Box 427, Cheyenne, WY 82003 Tel 307.433.9400 Fax 307.433.9433

August 30, 2022

CDL Program Manager, LCCC
100 East 3rd Avenue
Cheyenne, WY 82001

Attn: Michael Geissler

Dear Mr. Geissler,

As you may realize, the City of Cheyenne receives liability coverage as a member of the Wyoming Association of Risk Management ("WARM"). WARM is a self-funded liability pool that provides risk financing and claims administration services to its members. WARM is not an insurance company.

WARM is governed by the Wyoming Governmental Claims Act which limits liability to \$250,000 per claimant and \$500,000 per occurrence for governmental entities. Therefore, these are the general limits provided by WARM to its members.

Additionally, WARM may extend coverage only to its members; we are unable to provide a certificate of insurance that names LCCC as an additional insured.

Please contact me with any further questions you may have.

Sincerely,

Joseph Constantino
Executive Director

CC: Abbie Connally, Director, Contracting & Procurement, LLC
100 East 3rd Avenue, Cheyenne, WY 82001

Tara Nethercott, Crowley Fleck, PLLP
106 East Lincolnway, Suite 300, Cheyenne, WY 82001

Stefanie Boster, City Attorney, City of Cheyenne
2101 O'Neil Ave., Municipal Bldg., Rm 308, Cheyenne, WY 82001